

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC037975: MARIO RODRIGUEZ vs GENERAL MOTORS, LLC
09/11/2026 in Department 44
Continued Motion FOR COMPLIANCE AND SANCTIONS

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant General Motors, LLC’s Motion For Compliance and Sanctions

Tentative Ruling:

Defendant General Motors, LLC’s Motion For Compliance and Sanctions is DENIED AS MOOT in part and GRANTED in part.

Defendant General Motors, LLC’s Motion For Compliance is MOOT. The required deposition occurred on February 13, 2026, approximately 184 days after the statutory deadline.

Plaintiff’s counsel, David N. Barry and Debora Rabieian of the The Barry Law Firm have not presented substantial justification for the delayed depositions and are ordered to pay monetary sanctions pursuant to Code of Civil Procedure, section 871.26, subd. (j)(1) in the amount of \$1,500.00 within 15 business days of this order.

Notice to be provided by the moving party.